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Government of West Bengal
Department of Panchayats & Rural Development
Jessop Building (1st Floor), 63, N.S. Road, Kolkata-700 001

Memo No. 5749/ PN/O/1/1E-6/12 (Part 1)

Dated: 08.11.2012

From: D.K.Pal
Joint Secretary to the
Government of West Bengal

To: The Secretary,
West Bengal State Election Commission
18, Sarojini Naidu Sarani, Kolkata-700017

Sub: Clarification on certain points relating to reservation of the offices of
Chairpersons

Ref: No.1743-SEC/1D-123/2011 dated 31.10.2012

Sir,

With reference to the above, I am directed by order of the Governor to clarify the issues raised by the District Panchayat Election Officer and District Magistrate, Jalpaiguri vide his No. 1307/P&RD dated 30.10.2012 as under:

Issue raised	Clarification
1. If in any Gram Panchayat or Block, the office of the Pradhan or Sabhapati has reserved for General Women, then will the offices of Upa-Pradhan or Sahakari Sabhapati of that Gram Panchayat or Block be considered for reservation of ST/SC/BC category? Similarly, if in any Gram Panchayat or Block, the office of the Pradhan or Sabhapati has reserved for ST/SC/BC including SCW/STW/BCW, then will the offices of Upa-Pradhan or Sahakari Sabhapati of that GP or Block be considered for reservation for General Women?	1. Attention is drawn to the provisions laid down under sub-rule (3) of rule 2A of the West Bengal Panchayat (Constitution) Rules, 1975, as amended. It is stated therein that for the purpose of reservation under clause (a) and clause (b) of sub-rule (1), preference shall be given to reservation of the offices of the Pradhan or the Sabhapati, as the case may be, and after such reservation, offices of the Upa-Pradhan or the Sahakari Sabhapati shall not be reserved in the same Gram or the same Block, as the case may be. The said clause (a) contains the provisions for reservation of offices for SC, ST and BC persons and the said clause (b) contains the provisions for reservation of offices for women including SCW, STW and BCW. Therefore, the above provisions clearly establish that in both the cases, the offices of the Upa-Pradhan or the Sahakari Sabhapati of that GP or Block will not be considered for reservation in respect of any category.

2. During reservation of offices of the Upa-Pradhan or the Sahakari Sabhapati, as the case may be, for any category, Whether groups will be framed with all the Gram Panchayats, or Blocks coming into zone of consideration for that particular category or Groups will be formed after keeping aside those Gram Panchayats where offices of Pradhan or Sabhapati have already been reserved for any category of persons?	2. Attention is drawn to the first proviso of sub-rule (3) of rule 2A of the West Bengal Panchayat (Constitution) Rules, 1975, as amended. It is stated therein that, if in a Gram or Block, for any term of election, an office of Upa-Pradhan or Sahakari Sabhapati, as the case may be, to be reserved in accordance with the roster applicable where office of the Pradhan or the Sabhapati has already been reserved for the same term, such reservation of the office of the Upa-Pradhan or the Sahakari Sabhapati shall be deemed to have no effect and such reservation for that term of election shall be carried forward to the next Gram or Block in the same roster or, if no Gram or Block is available, in the same roster, in the Gram or Block occurring in sequential order in the roster valid for the next term of election. Therefore, this provision clearly establishes the fact that the groups will be formed with all the Gram Panchayats or Blocks coming into the zone of consideration for any particular category irrespective of the fact that any particular office has already been reserved for Pradhan or Sabhapati, as the case may be
3.If groups are formed with all the Gram Panchayats or Block coming into zone of consideration for any particular category and if in any group there are Gram Panchayats or Blocks available (not reserved for any category either for offices of Pradhan/Sabhapati or Upa-Pradhan/Sahakari Sabhapati) after reserving the required number of offices of Upa-Pradhan or Sahakari Sabhapati, as the case may be, for any particular category to be reserved from that group and in another group the number of Gram Panchayats or Blocks are less than the number of offices of Upa-Pradhan or Sahakari Sabhapati to be reserved for that category from that group, then whether will the number of offices of Upa-Pradhan or Sahakari Sabhapati	3. At first, the process for reservation in respect of offices of the Pradhan or the Sabhapati, as the case may be, will be completed. Thereafter, the process for reservation in respect of offices of the Upa-Pradhan or the Sahakari Sabhapati will be started. If at the end of the process, it appears that the required number of offices as determined for reservation in respect of the Upa-Pradhan or the Sahakari Sabhapati for any category is not available, then the process will stop there and it will not be reversed to start from initial stage. The available offices for reservation in respect of Upa-Pradhan or Sahakari Sabhapati following the prescribed procedure will only be reserved and the said number will deem to be redetermined accordingly in terms of sub-rule (5) of rule 2A.

to be reserved for that category be re-determined as per sub-rule (5) of rule 2A or any other process to be followed or whether the number of offices of Upa-Pradhan to be reserved for ST or SC will be redetermined as per sub-rule (5) of rule 2A, while there are Gram Panchayats which have not been reserved for any category are available in other groups?	
4. Once the number of offices to be reserved are apportioned finally to each group of fifty with part group, if any, after notionally apportioned to each group of ten as mentioned in clause (iv) (b) of sub-rule 2 of rule 2A, in which group shall the roster be applied.? In the group of fifty or ten? Or once the number of offices to be reserved are finally apportioned to each group of fifty or part group, is there any scope to apply the roster for group of ten as mentioned in clause (v) (a) of sub-rule 2 of rule 2A?	4. In the case in question, the roster shall be applied separately for every group of fifty Grams or Blocks, as the case may be, or for part group having less than fifty Grams or Blocks.

Yours faithfully,

sd/
(D.K. Pal)

Memo No. 5749/1(18)/ PN/O/1/1E-6/12 (Part-1)

Dated: 08.10.2012

✓ Copy forwarded for kind information to the District Magistrate... Bankura (All)

(D.K. Pal)